

END USER AGREEMENT

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4.TERM

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9.EQUITABLE RELIEF

You acknowledge and agree that a breach or threatened breach by You of any of its obligations under the Sections titled "License and Permission to Use," "Intellectual Property," and/or "Confidentiality" would cause Company irreparable harm for which monetary damages would not be an adequate remedy and agree that, in the event of such breach or threatened breach, Company will be entitled to equitable relief, including a restraining order, an injunction, specific performance, and any other relief that may be available from any court, without any requirement to post a bond or other security, or to prove actual damages or that monetary damages are not an adequate remedy. Such remedies are not exclusive and are in addition to all other remedies that may be available at law, in equity, or otherwise.

10.GOVERNING LAW

This Agreement, and all disputes, claims, and controversies arising under it, is governed by the laws of the State of Washington without giving effect to the principles thereof relating to conflicts of law. Each party expressly excludes the application of the Uniform Commercial Code and the United Nations Convention on Contracts for the International Sale of Goods. Each party hereby irrevocably consents to the jurisdiction of the state and federal courts located in the State of Washington, and waives any defense based on inconvenient forum in relation to such courts.

11.GENERAL

This Agreement contains the entire agreement between the parties with respect to the use, reproduction, and transfer of the Software.

Any waiver by either party of any provision of this Agreement shall not constitute or be deemed a subsequent waiver of that or any other portion.

Any amendment, modification or other change to this Agreement shall be ineffective unless made in writing and authorized by the Company.